

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ (SDVOSB)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ INVITATION ☐ FOR QUOTE ☐ FOR BID ☐ FOR PROPOSAL (RFQ) (IFB) (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Section A - Solicitation/Contract Form

Smartbear SW Renewal

Additional Regulation or Supplemental Clauses Incorporated by Full Text

A-TXT-SAP FOR YOUR INFORMATION (NAWCWD)

(Jul 2024)

The following addresses and points of contact are provided:

Purchase Agent
Name: Amy Lamberth
Phone: (760) 793-3897
Email address: amy.s.lamberth.civ@us.navy.mil

THE INFORMATION BELOW IS NOT ALL INCLUSIVE AS TO WHAT IS REQUIRED FOR A TECHNICAL EVALUATION. IT IS THE RESPONSIBILITY OF THE VENDOR TO SUBMIT ENOUGH INFORMATION FOR A SOUND TECHNICAL EVALUATION TO BE REVIEWED BY OUR TECHNICAL POINT OF CONTACT.

ANY CONTRACT RESULTING FROM THIS SOLICITATION WILL UTILIZE WIDE AREA WORKFLOW (WAWF) FOR INVOICING AND PAYMENT REQUEST. ****APPLE PRODUCTS DO NOT WORK WITH WAWF SYSTEM.**

THE BELOW INFORMATION IS REQUIRED FOR ANY AWARD RESULTING FROM THIS SOLICITATION.

VENDOR NAME:	
Address Line 1:	
Address Line 2:	
VENDOR POC:	
VENDOR PHONE:	
VENDOR FAX:	
VENDOR EMAIL:	
CAGE CODE:	

DUN & BRADSTREET #	
PRODUCT COUNTRY of ORIGIN:	
BUSINESS SIZE:	
SHIPPING DESTINATION or ORIGIN:	
SHIPPING COST:	
WAWF REGISTERED: https://wawf.eb.mil/	
SAM: https://www.sam.gov/portal/public/SAM	
WARRANTY IF ANY:	
DID YOU INCLUDE YOUR SPECIFICATIONS:	

A-TXT-05 QUOTE NUMBER (NAWCWD)

(Feb 2026)

TO BE COMPLETED AT TIME OF AWARD

QUOTE #_____ DATED_____

Partial Shipment/Partial Payment is ACCEPTABLE by complete line item only.

Partial shipment/Partial payment is NOT ACCEPTABLE.

Payment IS AUTHORIZED at the beginning of the period of performance. The invoice may not be submitted before the period of performance begins.

EARLY DELIVERY IS ACCEPTED AND AUTHORIZED AT NO ADDITIONAL COST TO THE GOVERNMENT.

Vendor Contact:

Name: _____

Phone: _____

Email: _____

Technical Contact:

Name: _____

Phone: _____

Email: _____

SHIPPING ADDRESS IS IN SECTION F, F-TXT-XX OF THIS DOCUMENT.

Invoicing instructions is in Section G of this document.

WAWF INVOICING HELP & INSTRUCTIONS:

Visit the website at <https://wawf.eb.mil/> and you can find help via the link "Vendors Getting Started" under the Getting Started Help area at the bottom of the website.

This vendor IS/IS NOT a small business under NAICS _____.

This order is a purchase order with the Federal Government and is tax exempt.

For accounting purposes, the WAWF/PIEE points of contact are: _____

THIS IS A FIRM FIXED PRICE ORDER. THE AMOUNT ON THE ORDER CANNOT BE CHANGED WITHOUT CONTRACTING OFFICER APPROVAL.

THE VENDOR AND TECHNICAL CONTACT MUST COORDINATE ALL DOCUMENTS NECESSARY TO OBTAIN ACCESS TO THE BASE AND LOCATION PRIOR TO VENDOR ARRIVAL OF FACILITY.

ADDITIONAL COST OR PARTS THAN WHAT IS LISTED ON THIS ORDER MUST BE APPROVED BY THE CONTRACTING OFFICER AND A MODIFICATION MUST BE COMPLETED BEFORE THE VENDOR PROCEEDS WITH CHANGES. FAILURE TO DO SO MAY RESULT IN AN UNAUTHORIZED COMMITMENT.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	TestComplete PRO Bundle - Fixed License - (1 Year Renewal) TC-PRO-NLMR-1Y POP: 1/24/26-1/23-27 Internal Number: 1000000850 Pricing Arrangement: Firm Fixed Price	9	Each		
0002	TestComplete PRO Bundle - Floating License - (1 Year Renewal) TC-PRO-FLMR-1Y POP: 1/23/26-1/23/27 Internal Number: 1000000850 Pricing Arrangement: Firm Fixed Price	5	Each		

Section C - Description/Specifications/Statement of Work

Requirements

Smartbear SW Renewal

Additional Regulation or Supplemental Clauses Incorporated by Full Text

CTXT.211-9502 GOVERNMENT INSTALLATION WORK SCHEDULE (NAVAIR)

(Apr 2022)

(a) The Holidays applicable to this contract are: New Year's Day, Birthday of Martin Luther King Jr., Washington's Birthday (President's Day), Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, and Christmas Day.

(b) In the event that any of the above holidays occur on a Saturday or Sunday, or alternate Friday, then such holiday shall be observed as they are by the assigned Government employees at the using activity.

(c) The Naval Air Warfare Center Weapons Division works a 4/5/9 work schedule. Therefore alternate Fridays are not a part of the normal workweek for work performed on-site at a Naval Air Warfare Center Weapons Division site. The majority of the Government offices are closed on alternate Fridays.

(d) No deviation in the normal workweek will be permitted without express advance approval by the designated Contracting Officer with coordination of the using departments.

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Additional Regulation or Supplemental Clauses Incorporated by Full Text

E-TXT-04 INSPECTION AND ACCEPTANCE (DESTINATION) (NAWCWD)

(Apr 2002)

Inspection and acceptance of the supplies or services to be furnished hereunder shall be made at destination by the receiving activity.

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: TO BE COMPLETED AT TIME OF AWARD DoDAAC: N60530 CountryCode: USA NAVAL AIR WARFARE CTR WEAPONS DIV 1 ADMINISTRATION CIRCLE, CHINA LAKE CA 93555-6001 CHINA LAKE, CA 93555-6001 UNITED STATES TO BE COMPLETED AT TIME OF AWARD, TO BE COMPLETED AT TIME OF AWARD Email: TO BE COMPLETED AT TIME OF AWARD Telephone: TO BE COMPLETED AT TIME OF AWARD
0002	Inspection and Acceptance Location Both Destination Instructions: TO BE COMPLETED AT TIME OF AWARD DoDAAC: N60530 CountryCode: USA NAVAL AIR WARFARE CTR WEAPONS DIV 1 ADMINISTRATION CIRCLE, CHINA LAKE CA 93555-6001 CHINA LAKE, CA 93555-6001 UNITED STATES TO BE COMPLETED AT TIME OF AWARD, TO BE COMPLETED AT TIME OF AWARD Email: TO BE COMPLETED AT TIME OF AWARD Telephone: TO BE COMPLETED AT TIME OF AWARD

Section F - Deliveries or Performance

Overall Contract Delivery Period

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 31 Mar 2026 to 23 Jan 2027	9 Each	Ship To DoDAAC: N60530 CountryCode: USA NAVAL AIR WARFARE CTR WEAPONS DIV 1 ADMINISTRATION CIRCLE, CHINA LAKE CA 93555-6001 CHINA LAKE, CA 93555-6001 UNITED STATES TO BE COMPLETED AT TIME OF AWARD, TO BE COMPLETED AT TIME OF AWARD Email: TO BE COMPLETED AT TIME OF AWARD Telephone: TO BE COMPLETED AT TIME OF AWARD
0002	Delivery Period From 31 Mar 2026 to 23 Jan 2027	5 Each	Ship To DoDAAC: N60530 CountryCode: USA NAVAL AIR WARFARE CTR WEAPONS DIV 1 ADMINISTRATION CIRCLE, CHINA LAKE CA 93555-6001 CHINA LAKE, CA 93555-6001 UNITED STATES TO BE COMPLETED AT TIME OF AWARD, TO BE COMPLETED AT TIME OF AWARD Email: TO BE COMPLETED AT TIME OF AWARD Telephone: TO BE COMPLETED AT TIME OF AWARD

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.247-34	F.o.b. Destination.	Jan 1991		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-TXT-10 SHIPPING INSTRUCTIONS (CHINA LAKE) (NAWCWD) (Jul 2024)

TO BE COMPLETED AT TIME OF AWARD

SHIP TO: NAVAL AIR WARFARE CENTER WEAPONS DIVISION (NAWCWD)

Attn: TPOC, N68936XXXXXX, Code: XXXXXX, Phone: (760) 939-XXXX
Bldg. 1024, Blandy Ave.
China Lake, CA 93555-6100

Failure to mark each shipping label and packing list as indicated above may result in return of shipment at your expense or will cause a delay in processing your invoice for payment.

DOCK HOURS are Monday through Thursday, and Alternating Fridays, 0730-1530. If you anticipate making delivery on a Friday please call Receiving at (760) 939-2186 to verify receiving dock hours.

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

COMBO **If a "COMBO" document type is identified but not supported by the Contractor's business systems, an "Invoice" and Stand Alone "Receiving Report" document may be used.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
 - (iv) For performance based payments, submit a performance based payment request.
 - (v) For commercial financing, submit a commercial financing request.
- (2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N64141</u>
Issue By DoDAAC	<u>N68936</u>
Admin DoDAAC	<u>N68936</u>
Inspect By DoDAAC	<u>Leave Blank</u>
Ship To Code	<u>N60530</u>
Ship From Code	<u>Leave Blank</u>
Mark For Code	<u>Leave Blank</u>
Service Approver (DoDAAC)	<u>Leave Blank</u>
Service Acceptor (DoDAAC)	<u>Leave Blank</u>
Accept at Other DoDAAC	<u>Leave Blank</u>
LPO DoDAAC	<u>Leave Blank</u>

DCAA Auditor DoDAAC	<u>Leave Blank</u>
Other DoDAAC(s)	<u>Leave Blank</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

N/A

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	Feb 2026	Deviation 2025-O0004	Mar 2025
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.252-2 **Clauses Incorporated by Reference.** **(Feb 1998)**

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)

52.252-6 **Authorized Deviations in Clauses.** **(Nov 2020)**

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Section J - List of Attachments

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

DFARS Clauses Incorporated by Full Text

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	(May 2021)
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PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7000 Buy American--Balance of Payments Program Certificate.

(Feb 2024)

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
==	==
==	==
==	==

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
==	==	==
==	==	==

==	==	==
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(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number ==

[List as necessary]

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

Section M - Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

PRICE
DELIVERY DATE
CAPABILITY MATCHING
AWARD WIHTOUT DISCUSSIONS